

		allegations of juror misconduct here. State Farm's other case, <i>Drust v. Drust</i> (1980) 113 Cal.App.3d 1, has been criticized, and the court does not find it persuasive. <i>Ferreira v. Quik Stop Markets, Inc.</i> (1983) 141 Cal.App.3d 1023, 1034-35 ("<i>Drust</i> appears to be an anomaly and is inconsistent with the clear language of Evidence Code section 1150, subdivision (a). We decline to follow <i>Drust</i> . . . <i>Drust</i> takes <i>Krouse</i> a step farther than permissible, and was wrongly decided."). Plaintiffs to give notice.
2	Garcia-Avila, et al. v. Orange County Erectors, Inc. 2022-01284202	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$750,000 class action and PAGA settlement. Subject to plaintiff's submission of the revised documents identified below, the court grants the motion as follows: \$5,000.00 for each plaintiff's enhancement payment (i.e., \$10,000.00 total) (not to exceed); \$250,000.00 for attorneys' fees (not to exceed); \$30,000.00 for litigation costs (not to exceed); \$8,000.00 for settlement administration costs (not to exceed); and \$40,000.00 total PAGA penalties (\$30,00.00 to LWDA). The court has the following comments: 1. The notice and paragraph 10 of the proposed order (ROA 92) should include the amounts set forth above. 2. The various now-superseded copies of the notice and forms should not be attached to the proposed order as exhibits. The only notice and forms attached to the proposed order should be the operative notice and forms (in English and Spanish). Plaintiff is ordered to file and serve by <u>December 19, 2024</u> a revised proposed order with all exhibits attached (including a revised notice as discussed above). The final approval hearing is scheduled for <u>May 1, 2025 at 2:00 p.m.</u> in Department CX104. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.

3	Lopez v. Sunny Delight Beverages Co. 2022-01280502	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$850,000 class action and PAGA settlement. Subject to plaintiff's submission of the revised documents identified below, the court grants the motion as follows: \$7,500.00 for plaintiff's enhancement payment (not to exceed); \$283,333.33.00 for attorneys' fees (not to exceed); \$28,000.00 for litigation costs (not to exceed); \$8,500.00 for settlement administration costs (not to exceed); and \$40,000.00 total PAGA penalties (\$30,00.00 to LWDA). The court has the following questions and comments: 1. What is the significance of the addendum to the settlement agreement now that the second addendum has been signed by the parties and counsel? Are the addendum and the second addendum identical? If so, why is the addendum needed? 2. The references to secondary locations of the documents referred to in the first paragraph of the proposed order should be removed. The citations to those documents should be only to the exhibits attached to the proposed order, not to other copies of the same documents located elsewhere in the court file. 3. The various now-superseded copies of the notice should not be attached to the proposed order as exhibits. The only notice attached to the proposed order should be the operative notice (in English and Spanish). Plaintiff is ordered to file and serve by <u>December 19, 2024</u> a revised proposed order with all exhibits attached. The final approval hearing is scheduled for <u>April 24, 2025 at 2:00 p.m.</u> in Department CX104. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
4	O'Neill v. Robinson Pharma Inc. 2020-01176039	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for